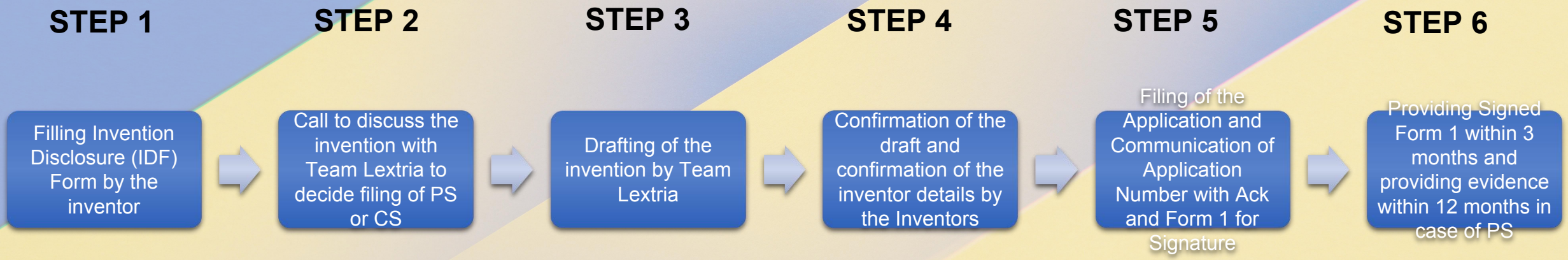
# PATENT INFORMATION DOCUMENT

LEXTRIA RESEARCH

## STEPS FOLLOWED BY LEXTRIA RESEARCH TO DRAFT AND FILE AN APPLICATION

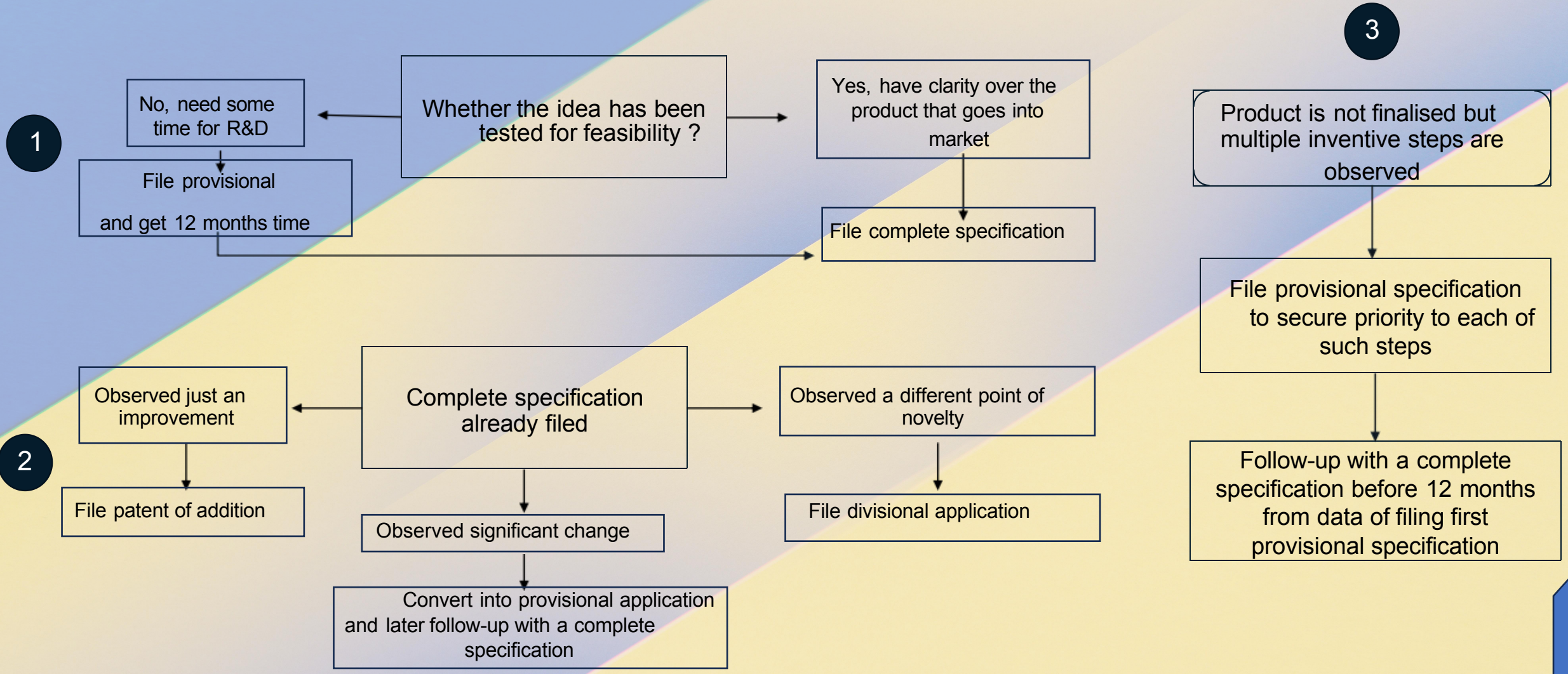



PS - Provisional Specification
CS - Complete Specification

*Details mentioned here are for illustration purpose only

# TESTS FOR SELECTING A PATENT APPLICATION

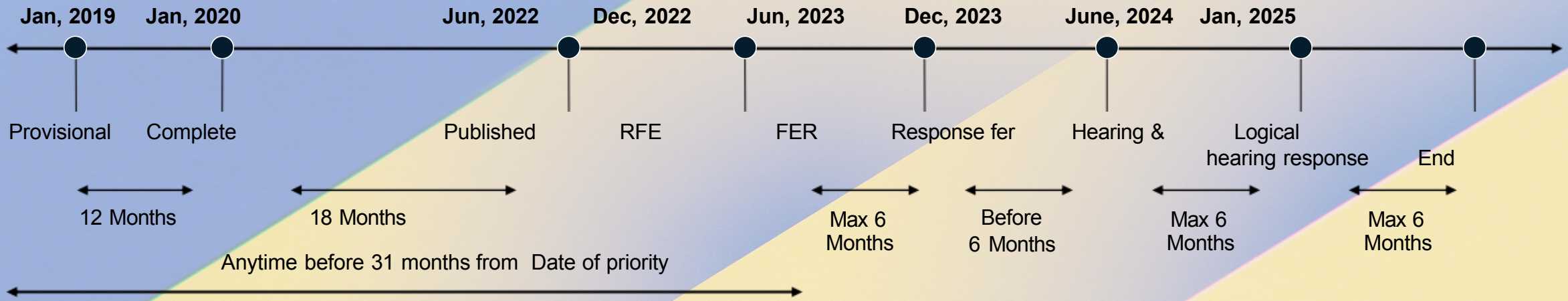
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# PATENT CYCLE - EXEMPLARY SCENARIO:

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## Note:

1. Date of priority is date of filing provisional application. In case complete specification is directly filed, date of priority is date of filing of the complete specification.
2. RFE: Request For Examination has to paid before 31 months from date of priority.
3. FER: First Exanimation Report shall be issued anytime before 6 months if REF is already filed.
4. Early publication request gets the application published as soon as possible.
5. Expedited examination is available only for Start-ups, SMEs, female applicants, Govt depts. and those who made India as search authority in foreign filings. In case of Expedited Examination, it takes about half the time as normal proceedings.
6. Logical End may include Grant/Refusal. In case of refusal, filing review petition.
7. RFE, Early publication, Expiated examination have stipulated govt. fees as discussed in the Schedule of Fees

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# SOME Keywords

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| APPLICANT | INVENTOR |
|---|---|
| Applicant may be a Legal person or a natural person | Inventor should always be a natural person |
| | |
| **PROVISIONAL SPECIFICATION** | **COMPLETE SPECIFICATION** |
| Provisional specification is filed with limited information to secure the concept and priority date before any possible public disclosure | Complete specification is filed with best possible information and evidance of validation to secure grant |
| | |
| **First Examination Report (FER)** | **HEARING** |
| It is a first communication from patent office, and includes certain objections observed by the patent office and to be complied with in 6 months in writing | It is an opportunity to defend the application via placing oral arguments, and it shall be the final stage |

*Details mentioned here are for illustration purpose only

# SOME FAQs

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| Sl. No | QN | ANS |
|---|---|---|
| 1 | What would happen if complete specification is not filed after provisional specification? | The Application would be abandoned, the priority would be lost. However, it shall not affect novelty so it can be refiled. |
| 2 | Can time to file complete specification be extended ? | Yes, it can be extended upto 6 month with fees and with lose of priority. |
| 3 | How much time it might take for the patent to be published and granted ? | It takes about 18 months for the patent to be published in case of early publication with fees, it might take about 1 month untill then the Application is confidantial. It might take about 12 to 30 months for the patent to be granted. |
| 4 | Is it compulsory for to do a prototype ? | As per patent act, its important to provide best method of working and evidance of working. It may or may not be prototype. However, in case if it is asked by patent office it may be a necessity. |

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